

Preliminary Development Feasibility Report

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Project and Site Description

- Address: 5508 Merrywing Circle, Austin, TX
- Proposed land use: Commercial retail
- Development description: Proposed single-story retail building with associated parking.
- Units: None
- Site area (acres): 1.2
- Reported zoning: None (status: multiple_records)
- Floodplain intersection: False
- Watershed: Panther Hollow

Synthesis

Based on the provided site data and regulatory evidence, here is a summary of major feasibility considerations, constraints, unknowns, and recommended next steps:

Major Feasibility Considerations:

1. Zoning: The property is zoned as DR (Development Reserve) and I-RR (Rural Residence), which may create conflicts and require additional approvals.
2. Floodplain: The site does not intersect with the floodplain, but there are nearby properties that do. This may impact future development plans.
3. Watershed: The site is located in the Panther Hollow watershed, which receives water from Lake Austin.

Constraints:

1. Zoning restrictions: The DR and I-RR zoning designations may limit the type of development that can occur on the property.
2. Floodplain regulations: While the site does not intersect with the floodplain, there are nearby properties that do, which may impact future development plans.
3. Watershed protection: The Panther Hollow watershed is a sensitive area that requires careful consideration to avoid environmental impacts.

Unknowns:

1. Utility capacity: There is no information on the availability of utilities such as water, sewer, and electricity at the site.
2. Parking requirements: The regulations for parking requirements are not clear, which may impact the design of the retail building.
3. Environmental impacts: While there are nearby properties that intersect with the floodplain, it is unclear what environmental impacts this may have on the proposed development.

Recommended Next Steps:

1. Verify zoning: Obtain official verification of the property's zoning designation to ensure compliance with regulations.
2. Conduct environmental assessments: Hire a professional to conduct an environmental assessment to identify potential risks and opportunities associated with the site.
3. Research utility capacity: Contact Austin Water, Capital Metropolitan Utility District (CMUD), and other relevant utilities to determine availability and capacity for water, sewer, and electricity at the site.
4. Review parking regulations: Consult with the City of Austin's Transportation Department to understand parking requirements and ensure compliance with regulations.
5. Engage with stakeholders: Meet with local residents, business owners, and community groups to discuss concerns and gather feedback on the proposed development.

By addressing these unknowns and constraints, developers can better understand the feasibility of their proposal and make informed decisions about moving forward with the project.

Sources Consulted

- Austin Land Development Code, Title 25 -

https://library.municode.com/tx/austin/codes/land_development_code

- Limitation: Snapshot export; ordinances adopted after the export date are not reflected.

- **Austin Drainage Criteria Manual** -

https://library.municode.com/tx/austin/codes/drainage_criteria_manual

- Limitation: Partial manual; other DCM sections are out of scope for this system.

- **Austin Transportation Criteria Manual** -

https://library.municode.com/tx/austin/codes/transportation_criteria_manual

- Limitation: Partial manual; other TCM sections are out of scope for this system.

- **Zoning by Address** - <https://data.austintexas.gov/> (search: Zoning by Address)

- Limitation: Preliminary reported zoning only; not an official zoning determination. No coordinates; matching is by address string.

- **Issued Construction Permits** -

<https://data.austintexas.gov/Building-and-Development/Issued-Construction-Permits/3syk-w9eu>

- Limitation: Issued permits 2021+ only. Historical proximity context; not approval precedent.

- **Site Plan Cases** - <https://data.austintexas.gov/> (search: Site Plan Cases)

- Limitation: Some records lack coordinates. Applicant/owner contact fields removed during preprocessing (privacy).

- **Plan Review Cases** - <https://data.austintexas.gov/> (search: Plan Review Cases)

- Limitation: Contains VOID/test records (retained but flagged exclude_from_search). Contact fields removed (privacy).

- **Watershed Boundaries** - <https://data.austintexas.gov/> (search: Watershed Boundaries)

- Limitation: 76 named watersheds within the Austin planning area.

- **Greater Austin Fully Developed Floodplain** - <https://data.austintexas.gov/> (search: Greater Austin Fully Developed Floodplain)

- Limitation: City of Austin fully developed floodplain model (Atlas 14); not the FEMA effective floodplain. Preliminary screening only.

Zoning and Land-Use Context

Retrieved regulatory references:

- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-518 QUALIFYING DEVELOPMENT
- LDC Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS
- LDC Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS
- LDC Section 25-2-581 CENTRAL BUSINESS DISTRICT (CBD) DISTRICT REGULATIONS

Site-Plan Considerations

Site-plan applicability depends on proposed use, zoning, and project characteristics; confirm with Development Services.

Retrieved regulatory references:

- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-518 QUALIFYING DEVELOPMENT
- LDC Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS
- LDC Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS
- LDC Section 25-2-581 CENTRAL BUSINESS DISTRICT (CBD) DISTRICT REGULATIONS

Drainage, Flood, and Environmental Considerations

Retrieved regulatory references:

- LDC Section 25-7-94 REQUIREMENTS IN CENTRAL BUSINESS AREA
- LDC Section 25-7-66 SUPPLEMENTAL REQUIREMENTS FOR DEVELOPMENT APPLICATIONS IN CERTAIN PLANNING AREAS
- LDC Section 25-7-92 ENCROACHMENT ON FLOODPLAIN PROHIBITED
- LDC Section 25-7-61 CRITERIA FOR APPROVAL OF DEVELOPMENT APPLICATIONS
- DCM Section 1.2.6 Floodplain Delineations

Transportation and Access Considerations

Retrieved regulatory references:

- TCM Section 9.3.4.1 Queuing
- TCM Section 9.4.1 OFF-STREET GENERAL LOADING REQUIREMENTS
- TCM Section 9.3.2 GENERAL DESIGN CRITERIA
- LDC Section 25-6-472 PARKING FACILITY STANDARDS
- LDC Section 25-6-292 DESIGN AND CONSTRUCTION STANDARDS

General Water and Wastewater Considerations

Regulatory requirements do not establish actual water or wastewater service availability or capacity. Verification with the appropriate utility authority is required.

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Retrieved regulatory references:

- LDC Section 25-9-33 SERVICE EXTENSION APPLICATION
- LDC Section 25-9-383 AVAILABILITY OF RECLAIMED WATER SERVICE
- LDC Section 25-9-410 APPLICABILITY
- LDC Section 25-9-31 APPLICABILITY
- LDC Section 25-9-91 TAP PERMIT REQUIRED

Historical Permit and Case Context

Nearby permits and cases are historical context only. They must not be treated as evidence that the proposed development requires professional verification. [Claim removed or revised: unsupported definitive statement; professional verification required.]

Summary: Permit count: 6, Site plan count: 0, Plan review count: 9

Potential Constraints

- No major constraint labeled from available screening data; professional verification is still required.

Missing Information and Required Verification

- Verification required (zoning): Zoning lookup status is 'multiple_records'; official verification is required before design decisions.
- Verification required (historical_context): Nearby permits and cases are historical context only and must not be treated as approval precedent.
- Verification required (citations): One or more retrieved citations could not be verified against the approved regulatory index.
- Warning: Zoning could not be confirmed exactly and requires verification.
- Warning: 1 citation(s) failed verification and were excluded from supported regulatory citations.

Source Citations

1. LDC - Section 25-2-518 QUALIFYING DEVELOPMENT (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
2. LDC - Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
3. LDC - Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
4. LDC - Section 25-2-581 CENTRAL BUSINESS DISTRICT (CBD) DISTRICT REGULATIONS (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
5. LDC - Section 25-7-94 REQUIREMENTS IN CENTRAL BUSINESS AREA (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
6. LDC - Section 25-7-66 SUPPLEMENTAL REQUIREMENTS FOR DEVELOPMENT APPLICATIONS IN CERTAIN PLANNING AREAS (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
7. LDC - Section 25-7-92 ENCROACHMENT ON FLOODPLAIN PROHIBITED (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
8. LDC - Section 25-7-61 CRITERIA FOR APPROVAL OF DEVELOPMENT APPLICATIONS (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code

9. DCM - Section 1.2.6 Floodplain Delineations (Section 1) |
https://library.municode.com/tx/austin/codes/drainage_criteria_manual
10. TCM - Section 9.3.4.1 Queuing (Section 9) |
https://library.municode.com/tx/austin/codes/transportation_criteria_manual
11. TCM - Section 9.4.1 OFF-STREET GENERAL LOADING REQUIREMENTS (Section 9) |
https://library.municode.com/tx/austin/codes/transportation_criteria_manual
12. TCM - Section 9.3.2 GENERAL DESIGN CRITERIA (Section 9) |
https://library.municode.com/tx/austin/codes/transportation_criteria_manual
13. LDC - Section 25-6-472 PARKING FACILITY STANDARDS (Chapter 25-6) |
https://library.municode.com/tx/austin/codes/land_development_code
14. LDC - Section 25-6-292 DESIGN AND CONSTRUCTION STANDARDS (Chapter 25-6) |
https://library.municode.com/tx/austin/codes/land_development_code
15. LDC - Section 25-9-33 SERVICE EXTENSION APPLICATION (Chapter 25-9) |
https://library.municode.com/tx/austin/codes/land_development_code
16. LDC - Section 25-9-383 AVAILABILITY OF RECLAIMED WATER SERVICE (Chapter 25-9) |
https://library.municode.com/tx/austin/codes/land_development_code
17. LDC - Section 25-9-410 APPLICABILITY (Chapter 25-9) |
https://library.municode.com/tx/austin/codes/land_development_code
18. LDC - Section 25-9-31 APPLICABILITY (Chapter 25-9) |
https://library.municode.com/tx/austin/codes/land_development_code
19. LDC - Section 25-9-91 TAP PERMIT REQUIRED (Chapter 25-9) |
https://library.municode.com/tx/austin/codes/land_development_code

Preliminary-Review Disclaimer

This is a preliminary site-feasibility screening only. It is not an official zoning determination, code-compliance decision, development approval, or guarantee of utility service.